

Request for Proposal (RFP)

For

Search Engine Enhancement using
Natural Language Processing (NLP)

For

Government e-Marketplace (GeM)

RFP No. –RFP/2020/04-GeM

Date –06-05-2020

Government eMarketplace (GeM)
3rd Floor, Tower II, Jeevan Bharti Building

**Connaught Place,
New Delhi - 110001**

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This RFP document is not an agreement and is neither an offer nor invitation by GeM to the prospective Bidders or any other person. The purpose of this RFP document is to provide interested parties with information that may be useful to them in making their technical and financial offers ("Bid(s)") pursuant to this RFP document. This RFP document includes statements, which reflect various assumptions and assessments arrived at by GeM in relation to the Project. Such assumptions, assessments, and statements do not purport to contain all the information that each Bidder may require. This RFP document may not be appropriate for all persons, and it is not possible for GeM, its employees or advisors to consider the investment objectives, financial situation, and particular needs of each party who reads or uses this RFP document. The assumptions, assessments, statements and information contained in this RFP document, may not be complete, accurate, adequate or correct. Each Bidder should, therefore, conduct its own investigations and analysis and should check the accuracy, adequacy, correctness, reliability, and completeness of the assumptions, assessments, statements, and information contained in this RFP document and obtain independent advice from appropriate sources.

Information provided in this RFP document to the Bidder(s) is on a wide range of matters, some of which may depend upon interpretation of law. The information given is not intended to be an exhaustive account of statutory requirements and should not be regarded as a complete or authoritative statement of law. GeM accepts no responsibility for the accuracy or otherwise for any interpretation or opinion on law expressed herein.

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GeM also accepts no liability of any nature whether resulting from negligence or otherwise howsoever caused arising from reliance of any Bidder upon the statements contained in this RFP document. GeM may in its absolute discretion, but without being under any obligation to do so, update, amend, or supplement the information, assessment or assumptions contained in this RFP document.

The issue of this RFP document does not imply that GeM is bound to select a Bidder or to appoint the Successful Bidder for the Project and GeM reserves the right to reject all or any of the Bidders or Bids without assigning any reason whatsoever.

The Bidder shall bear all their costs associated with or relating to the preparation and submission of their Bid including but not limited to preparation, copying, postage, delivery fees, expenses

associated with any demonstrations or presentations which may be required by GeM or any other costs incurred in connection with or relating to Bid. All such costs and expenses will remain with the Bidder and GeM shall not be liable in any manner whatsoever for the same or for any other costs or other expenses incurred by a Bidder in preparation or submission of the Bid, regardless of the conduct or outcome of the bidding process.

1. Introduction

1.1 Overview

Government e-Marketplace (GeM) is the National Public Procurement Portal for providing procurement of goods and services for Central and State Government organizations. GeM aims to enhance transparency, efficiency and speed in public procurement while emphasizing inclusiveness. It provides the tools of e-bidding, reverse e-auction and direct purchase to facilitate procurement in a transparent manner with cost savings.

1.2 Purpose

Government e-Marketplace (GeM) intends to Streamline and Enhance Search functionality with help of Natural Language Processing (NLP) and AI techniques on GeM Portal to return relevant results with greater accuracy from right product/ service category. The purpose is to make the search functionality on the portal more efficient and effective. It is intended that a suitable agency be engaged to implement an intelligent cognitive search for the buyers searching for products and services on GeM Portal <https://gem.gov.in/>. Existing sSearch functionality in GeM is exact keyword based search and there is scope for enhancement in this search functionality facility on GeM can be enhanced and made more effective through use of on Natural Language Understanding and Natural Language Processing. Some of the areas of improvement are as follows but not limited to:

- Keywords based search with no Natural Language Understanding (NLU) and no Cognitive Intelligence
- Scope for enhancing search results, including displaying correct/more relevant products & services on Top pages. When Buyers doesn't find intended item among top results, they may claim Non-availability on GeM and move to other modes for procurement like CPPP thereby deviating from the mandate of the Government of India
- Scope for improvement in category fitment, catalog management and category cleansing of products

The selected bidder will have to implement the following high-level Scope of Work to overcome the above challenges:

- **Develop, Install, Integrate and Commission, operate & maintain an intelligent, cognitive, NLP based Search String Optimization solution** seamlessly integrated with existing search architecture of GeM with required manpower, system and application software and host on current GCC infrastructure. Bidder to provide any other component as required to meet the requirement as mentioned in the scope of this RFP.
- String Optimizer to isolate Product/Service Feature Information by focusing on words specific to Product by performing **Stop word removal, Stemming, Lemmatization, Tokenization, Normalization and Noise Removal** on search string to generate optimized string
- **NLP and Machine Learning based Category Classifier** to identify correct category of product based on search string entered by user. This will leverage NLP based algorithms

in the form of **TF-IDF, word2vec, Support Vector Machine, Naïve Bayes** to identify product/service category.

- Integration of above NLP based search optimization capability in the form of a micro-service/ API for it to be consumed by GeM's existing Web Service/APIs for seamless integration with existing Apache Solr based search.
- The NLP solution will also be deployed as part of product & service offering by a seller /Service Provider on GeM , to help upload in correct category.
- Further, the IPR of the solution should be perpetually in the name of GeM without any additional payout from GeM SPV including association of Royalty fee/AMC etc. The bidder is to provision and for the same.

1.3 General Tender Details

Request for Proposal (RFP) for Search Engine Enhancement using Natural Language Processing (NLP)		
1	Invitation of RFP	06-05-2020 (18:00 Hrs)
2	Date of Commencement of Bidding Process	06-05-2020 (18:00 Hrs)
4	Last Date & Time for Receipt of Queries from Bidders for Clarifications	14-05-2020 (18:00 Hrs)
5	Date of Pre-Bid Meeting	14-05-2020 (11:00 AM onwards)
6	Place of Pre-Bid Meeting	Online through VC for which link will be shared later to all those who will raise queries) or in 3 rd Floor Tower 2 Jeevan Bharti Building, New Delhi, 110001 if covid-19 lockdown is relaxed)
7	Authorities Response to Queries	16-05-2020 (18:00 Hrs)
8	Last Date & Time for Online Bid Submission	29-05-2020 (15:00 Hrs)
11	Date & Time of Bid Opening	30-05-2020 (15: 00 Hrs)
12	Place of Bid Opening	Online on CPPP (or 3 rd Floor Tower 2 Jeevan Bharti Building, New Delhi, 110001 in COVID-Lockdown is relaxed)
14	Earnest Money Deposit (EMD)	INR 5(Five) Lakh only
15	Contact details of Buyer	grm1-gem@gem.gov.in
16	Date of communicating list of bidders meeting pre-qualification criteria	To be communicated
17	Date & Venue for Presentation by bidders meeting pre-qualification criteria	To be communicated
18	Date of communicating list for Technically Qualified Bidders	To be communicated

19	Date for opening of Financial Bid in presence of technically qualified bidder's representatives	To be communicated
20	Performance Bank Guarantee	10 (Ten) percent of the total cost of Financial Proposal

Note:

1.4 Instruction to the Bidders

1.4.1 General

All information supplied by bidders may be treated as contractually binding on the bidders, on successful award of the assignment by GeM on the basis of this RFP document. No commitment of any kind, contractual or otherwise shall exist unless and until a formal written contract has been executed by or on behalf of GeM. GeM may cancel this procurement of services at any time prior to a formal written contract being executed by or on behalf of GeM. This RFP Document supersedes and replaces any previous public documentation & communications, and bidders should place no reliance on such communications.

1.4.2 Bidding document

Bidders are advised to study all instructions, forms, requirements, appendices and other information in the RFP Document carefully. Submission of the bid / proposal shall be deemed to have been done after a careful study and examination of the RFP document with full understanding of its implications.

Failure to comply with the requirements of this paragraph may render the Proposal as noncompliant and the proposal shall be rejected. Bidders must:

- Comply with all requirements as set out within this RFP document
- Submit the forms as specified in this RFP document and respond to each element in the order as set out in the RFP document
- Include all supporting documentations specified in this Tender Document.

1.4.3 Consortium

Consortium is not allowed. However, the Bidder can sub-contract a maximum of 30 % of the overall contract value for procurement of specialized, cutting edge AI/ML/Deep Learning/Cognitive Computing/ NLP services and products with leading OEMs as well as other capable Organizations and Startups. The prime responsibility of helming, managing and successfully completing the project will remain with the Bidder only.

1.4.4 Pre-Bid Queries and Clarifications

1.4.4.1 Bidders' Queries

The Bidders will have to ensure that their queries if any, shall reach GeM by e-mail only at Email ID: grm1-gem@gem.gov.in on or before Time: 18:00 on Date: 14-05-2020. The Pre-Bid Meeting is scheduled to be held at Time: 11:00AM on Date: 14-05-2020. The queries after Pre-Bid Meeting will be responded through mail by Date: 16-04-2020. If required, the corrigendum shall be uploaded in the Portal for more clarity on that queries.

The queries should necessarily be submitted in the following format:

No.	Document Reference(s) (Section & Page No.(s))	Content of Tender Document requiring Clarification(s)	Points of Clarification
1			
2			
3			

GeM shall not be responsible for ensuring that the bidders' queries have been received by GeM. Any requests for clarifications after the indicated Date and Time may not be entertained by GeM. E-mail queries shall carry "Search Engine Enhancement using Natural Language Processing (NLP) for GeM - Tender Query Request" in the subject line.

1.4.4.2 Response to Pre-Bid Queries and Issue of Corrigendum

GeM will endeavor to provide timely response to all queries. However, GeM makes no representation or warranty as to the completeness or accuracy of any response made in good faith, nor does GeM undertake to answer all the queries that may have been posed by the bidders.

At any time prior to the Last Date & Time for Bid Submission, GeM may, for any reason, whether at its own initiative or in response to a clarification requested by a prospective Bidder, modify the RFP Document by a corrigendum. The Corrigendum (if any) & clarifications to the queries from all bidders will be posted on the website, www.gem.gov.in and CPPP.

Any such corrigendum shall be deemed to be incorporated into this RFP Document. In order to provide prospective Bidders reasonable time for taking the corrigendum into account, GeM may, at its discretion, extend the deadline for Bid Submission

1.4.5 Right to Process Termination

GeM may terminate the RFP process at any time without giving any reason, whatsoever with no liabilities towards the bidders. GeM makes no commitments, express or implied, that this process will result in a business transaction with anyone.

This RFP does not constitute an offer by GeM. The bidder's participation in this process may or may not result in GeM selecting the bidder to engage towards execution of the contract.

1.4.6 Language of Bids

The bids prepared by the bidder and all correspondence and document relating to the bids exchanged by the bidder and GeM, shall be written in English.

1.4.7 Authentication of Erasures / Overwriting etc

Any inter-lineation, erasures or overwriting shall be valid only if the person(s) signing the bid initial(s) them.

1.4.8 Amendment of Bidding Documents

At any time prior to the Last Date and Time for Bid Submission, GeM may, for any reason, modify the Bidding Documents through amendments at the sole discretion of GeM. All amendments shall be uploaded on the GeM's websites (www.gem.gov.in and CPPP) and will be binding on all those who are interested in bidding. In order to provide prospective Bidders a reasonable time to take the amendment if any, into account in preparing their

bid, GeM may, at its discretion, extend the deadline for Bid Submission

1.4.9 Validity of Bid Documents

Bid shall remain valid for 03 months from last date of submission of bid prescribed by GeM. A bid valid for shorter period shall be rejected by GeM as non-responsive.

1.4.10 Late Bid

Any bid received by GeM after the deadline for Bid Submission will be rejected.

1.4.11 Bid Currency

Prices shall be expressed in the Indian Rupees only

1.4.12 Bid Earnest Money

Bidders shall submit, along with their Bids, an EMD of INR 5 lakh only, by Demand Draft in favour of Government eMarketplace payable at New Delhi to Sh Anuj Kumar- Director (Admin) GeM, 3rd Floor, Tower II , Jeevan Bharti Building, Connaught Place, New Delhi. EMD of all unsuccessful bidders would be refunded by GeM within 01 Months of the notification of the successful bidder. The EMD, for the amount mentioned above, of the successful bidder would be returned upon submission of Performance Bank Guarantee. The EMD amount is interest free and will be refundable to the unsuccessful bidders without any accrued interest on it.

The bid / proposal submitted without the EMD, mentioned above, will be summarily rejected.

The EMD may be forfeited in following situation:

- If a bidder withdraws the bid during the period of bid validity
- In case of a successful bidder, if the bidder fails to sign the contract in accordance with this RFP Document.

In view of COVID, bidders can now submit EMD through DD/ RTGS/ IMPS

In case of electronic transfer the following are the account details

- Account Holder Name : GOVERNMENT E-MARKETPLACE
 - Bank Name : State Bank of India
 - Branch Name : NEW DELHI MAIN BRANCH
 - Account No : 00000037749432186
 - IFSC Code : SBIN0000691 Note:
- The bidder must quote the UTR No/ Transaction Reference No.
 - Bids of only those bidders shall be opened whose transferred amount has been credited into GeM account by **29-05-2020 (15:00 Hrs)**.
 - The credit against the UTR No will be verified by GeM . Bids of only those bidders may be opened whose amount has been credited
 - Mere proof of transfer shall not be enough. Some time may elapse between amount transfer by bidder and credit to GeM account and accordingly bidders may need to transfer well in time to ensure that amount gets credited into GeM's account by specified date and time. GeM will not be accountable for non reflection due to any glitch or other reasons in this regard from the banking system and / or bidder side.

1.4.13 Bidding Process

1.4.13.1 Technical Bid

Technical Bid will contain all the supporting documents regarding Eligibility Criteria, Scope of Work, Technical Aspects, Compliance Statement and Terms & Conditions etc mentioned in the RFP, and **NOT contain any pricing or commercial information at all**. Technical bid documents with any commercial information will be rejected.

The Technical bid must be submitted through CPPP only. Bids will not be accepted through any other mode. As first process in the evaluation of Bids stage, only Technical Bids will be opened and evaluated. Bids of only those bidders would be evaluated further on Technical parameters who will comply all the eligibility criteria and those bidders who will confirm compliance to all the terms & conditions of RFP Document shall be short-listed for commercial stage.

Due to current National Health Emergency of unprecedented and historic scale and lockdown of non-essential services, resulting from COVID-19 pandemic, there have been multiple requests from potential bidders for relaxation of norms requiring credentials/documents with physical seal/stamp and notarized documents on physical stamp papers from external players like Bank, CA, Notary, Legal etc

It is therefore clarified that as of now the bidders may submit all such documents as Self-Certified, scanned documents along with the bid with or without seal/stamp. However, as and when the situation improves, the bidders will have to expeditiously submit properly signed, sealed and notarized documents, as per original requirements of abovementioned RFP and Corrigenda thereafter as soon as may be possible.

In case a bidder fails to submit/produce properly signed, sealed and notarized documents, as per original requirements of the above RFP and Corrigenda even after being in a position to do so as may be reasonably construed, the tendering authority reserves the right to cancel/ terminate the participation/qualification/selection of a bidder even after successful pre-qualification, technical qualification and commercial qualification.

1.4.13.2 Commercial Bid

In the second stage, the Commercial Bid of only those bidders will be opened, who will comply all the Eligibility Criteria and will confirm compliance to all the Terms & Conditions of RFP Document in the Technical Evaluation and scores at least 80% marks in Technical Evaluation Stage.

1.4.14 Bid Preparation Cost

The bidder shall be responsible for all costs incurred in connection with participation in the RFP process, including, but not limited to, costs incurred in conduct of informative and other diligence activities, participation in meetings / discussions / presentations, preparation of proposal, in providing any additional information required by GeM to facilitate the evaluation process, and in negotiating a definitive contract for all such activities related to the bid process.

GeM will in no case be responsible or liable for those costs, regardless of the conduct or outcome of the bidding process.

1.4.15 Bid Submission

Bidders are required to strictly submit their bids in electronic form on CPPP by using their digital certificates of **class II** and above (both encryption and signing). All the interested bidders should register themselves in the e-procurement system at CPPP for submitting the bids online, if they have not done earlier. The RFP Document and further Corrigendum, if any can also be downloaded from website cppp. Bids received after closing of the bid in the e-procurement system shall summarily rejected without any reason.

1.4.16 Deadline for Bid Submission

Bids must be submitted not later than the specified date and time mentioned in the RFP Document. If the specified date of bid submission is declared a holiday for the purchaser, the bids will be received up to the specified time on the next working day. GeM may, at its discretion, extend this deadline for submission of bids by amending the bid documents, in which case all rights and obligations of GeM and bidders, previously subject to the deadline, will thereafter be subject to the deadline extended. All the correspondence should be addressed to GeM on email- grm1-gem@gem.gov.in

1.4.17 Bid Modification and / or Withdrawal

1.4.17.1 Modification of the submitted bid shall be allowed online and the bidder may modify and resubmit the bid online only before the deadline of Bid Submission. For modification of e-bid, bidder has to rework and upload / resubmit digitally signed modified bid on CPPP portal

1.4.17.2 Bids once submitted will be treated as final and no bid may be modified subsequent to the deadline

1.4.17.3 No bid may be withdrawn in the interval between the deadline for Bid Submission and the expiration of period of Bid Validity specified in RFP Documents. For Bid Withdrawal after the End Date of Online Bid Submission, the bidder will have to make a request in writing to RFP Inviting Authority of GeM. Bid Withdrawal may be allowed till issue of work order with the following provision of penal action:

- If the request of withdrawal is received before fixing the Date for Opening of Price Bid, the EMD submitted by bidder will be forfeited and bidder will be debarred for XX months from participating in GeM tenders. The price bid of remaining technically qualified bidders will be opened and the RFP process shall go on.
- If the request of withdrawal is received after fixing the Date for Opening of Price Bid, the EMD submitted by bidder will be forfeited and bidder will be debarred for XX months from participating in GeM tenders. The price bid of all technically qualified bidders including this bidder (if he found technically eligible) will be opened and action will follow as under:
 - If the bidder withdrawing his bid is other than L-1, the RFP process shall go on.
 - If the bidder withdrawing his bid is L-1, the re-tender will be done.

1.4.18 Contacting GeM

Any effort by a bidder to influence GeM in Bid Evaluation, Bid Comparison or Contract Award Decision may result in the rejection of the Bidders' bid. GeM's decision will be final and without prejudice and will be binding on all parties.

1.4.19 Terms and Conditions of the Bidding Firms

The bidding firms are not allowed to impose their own terms and conditions to the bid and if submitted will not be considered as forming part of their bids. The bidders are

advised to clearly specify the deviations, in case terms and conditions of the contract applicable to this invitation of RFP are not acceptable to them.

1.4.20 Local Conditions

The bidder must acquaint himself with the local conditions and factors, which may have any effect on the performance of the contract and / or the cost.

1.4.21 Preliminary Examination

GeM will examine the bids to determine whether they are complete, whether any computational errors have been made, whether required information have been provided as underlined in the bid document, whether the documents have been properly signed, and whether bids are generally in order. Bids from agents without proper authorization from the Bidder as per authorization from shall be treated as non-responsive. Arithmetical errors will be rectified. If there is any discrepancy between words and figures, the amount in the words will prevail.

The bid determined as not substantially responsive will be rejected by GeM and may not be made responsive by the bidder by correction of the non-conformity.

GeM may waive any minor informality or non-conformity or irregularity in a bid, which does not constitute a material deviation, provided such waiver does not prejudice to affect the relative ranking of any bidder.

1.4.22 Revelation of Prices

The prices in any form or by any reasons should not be disclosed in the technical or other parts of the bid except in the commercial bid. Failure to do so will make the bid liable to be rejected.

1.4.23 Force Majeure

Notwithstanding the above provisions, the successful bidder shall not be liable for penalty or termination for default if and to the extent that it's delay in performance or other failure to perform its obligations under the contract is the result of an event of force majeure. For purposes of this clause, "force majeure" means an event beyond the control of the bidder and not involving the bidders' fault or negligence and not foreseeable. Such events may include, but are not restricted to, war or revolution and epidemics. If a force majeure situation arises, the bidder shall promptly notify GeM in writing of such condition and the cause thereof. Unless otherwise directed by GeM in writing, the bidder shall continue to perform its obligation under the contract as far as is reasonably practical, and shall seek all reasonable alternative means of performance not prevented by the force majeure event.

1.4.24 Non-Disclosure

By virtue of Contract, as and when it is entered into between GeM and the successful bidder and individual team member as deployed for this project, and its implementation thereof, the successful bidder may have access to the confidential information and data of GeM and its customers. The successful bidder will enter into a Non-Disclosure Agreement to maintain the secrecy of GeM's data as per following -

- That the successful bidder will treat the confidential information as confidential and shall not disclose to any third party. The successful bidder will also agree that its employees, agents, sub-contractors shall maintain confidentiality of the confidential information
- That the successful bidder will agree that it shall neither use, nor reproduce for use

in any way, any confidential information of GeM without consent of GeM. That the successful bidder will also agree to protect the confidential information of GeM with at least the same standard of care and procedures used by them to protect its own confidential information of similar importance. Without limitation of the foregoing, the successful bidder shall use reasonable efforts to advise GeM immediately in the event that the successful bidder learns or has reason to believe that any person who has had access to confidential information has violated or intends to violate the terms of the Contract to be entered into between GeM and the successful bidder, and will reasonably cooperate in seeking injunctive relief against any such person.

- That if the successful bidder hires another person to assist it in the performance of its obligations under the Contract, or assigns any portion of its rights or delegates any portion of its responsibilities or obligations under the Contract to another person, it shall cause its assignee or delegate to be bound to retain the confidentiality of the confidential information in the same manner as the Bidder is bound to maintain the confidentiality. This clause will remain valid even after the termination or expiry of this agreement
- That the successful bidder will strictly maintain the secrecy of GeM's data.

2. Eligibility Criteria of the Bidder

No.	Requirement	Specific Requirement	Documents Required	Reference Form
1	Certificate of Incorporation	The Bidder should be a Company registered in India under Companies Act, 1956/ Companies Act, 2013 or a partnership firm registered under LLP Act, 2008 Partnership Firms registered under the India Partnership Act, 1932 Registered with the Service Tax Authorities, GSTN authorities and should have been in existence continuously at least for the last 5 completed financial years as on the last date of submission of the bid.	The copy of Certificate of Incorporation should be submitted	Annexure 2
2	Business Entity	The Bidder should be an established IT / ITES/ Consulting organization and should have been in the business of providing various hardware / software implementation services including Data Analytics solution for a period of at least last three completed financial years as on the date of submission of Bids.	Memorandum and Articles of Association	Annexure 2
3	Turnover	The Bidder should have a minimum turnover of INR 25 crores in ITES in each of the last 3 (Three) financial years (2016-17, 2017-18 & 2018-2019).	Copy of the audited Balance Sheets and / or CA certified details for the last 3 financial years (2016-17, 2017-18 & 2018-19) are to be submitted	Annexure 6
4	Net Worth	The bidder should have a positive net worth during each of the last three (3) financial years. i.e. (2016-17, 2017-18 & 2018-19)	Copy of the duly audited Balance Sheet along with Profit & Loss Statements for each of the last 3 financial years and / or Certificate of CA	Annexure 6
5	Experience	Bidder should have	Copy of the	Annexure 4

		implemented at least: A) 1 Turnkey IT project Globally with a government client of value INR 2 cr in last 5 years from the last date of bid submission. B) 1 NLP or Analytics project globally of order value INR 1 cr	Purchase order or Letter of Award or Contract of the work.	
6	Quality Certifications	The bidder should have valid Certification in ISO 9001:2008; ISO 20000-1:2011 OR ISO 27001:2013 OR CMMi Maturity Level 3 certified organization or higher.	Self-certified copies of valid certificates from authorized agencies (validity at the time of bidding process)	
7	Blacklisting	Self-certified letter by the authorized signatory of the bidder that the bidder is currently not blacklisted by any Government Organizations, Public Sector Undertakings or Public Limited Companies and is not under a declaration of ineligibility for corrupt or fraudulent practices as on the date of submission of bids.	Self-Certified letter by the authorized signatory	Annexure 10

Note:

1. Bidder should submit detailed response along with documentary proof for all of the above eligibility criteria. The eligibility will be evaluated based on the bid and the supporting documents submitted, Bids not meeting the above eligibility criteria will be rejected
2. Technical Evaluation will be done by GeM's technical evaluation committee and the decision of the committee will be final
3. Bidders to submit relevant documentary evidence for all parameters mentioned
4. Providing any wrong information by the bidder will result in disqualification of the bidder. GeM may cross check above parameters by any means / during site visit
5. It may be noted that Data residency of the entire solution as proposed should remain in the geographical/electronic boundary of GCC environment as provided by GeM. It is clarified that for the bidder to provide the services as required in this RFP should entail processing of data outside GCC environment.

3. Technical Evaluation and Award Criteria

After opening of the technical bids, all the documents and annexure (except commercial documents/offer) will be evaluated first by GeM

- Bid document must be submitted in a through CPPP only. All pages of the Bid Document must be serially numbered and must be digitally signed by the authorized signatory including all annexures. All Annexure must be on the letter head of the Bidder
- First of all, EMD of all bidders will be verified. If any EMD is not found in order, that bidder will be declared ineligible for further participating in the RFP process.
- Afterwards, the technical bids will be evaluated based on the eligibility criteria defined in the RFP document. Bids complying with all the eligibility criteria and confirming compliance to all the terms & conditions of RFP document would be further evaluated on technical parameters.
- Bidders satisfying all eligibility criteria will be required to execute a POC and present a Demonstration of same, at location as per GeM's discretion, during Technical Evaluation Process which would be marked as per scoring mechanism given below. The Bidders will have to arrange for the POC Demonstration within 2 Business Weeks at location as per GeM's discretion from the receipt of such communication from GeM, failing which, their bids will be rejected.

The **Technical Bid** along with all the Documents, Annexure and Demonstration / Presentation will be evaluated by GeM and will be scored as below table:

No.	Parameters			Total Marks
1	Average Turnover of Bidder in past each years from ITES services (financial Year 2016-17, 2017-18 & 2018-19)	Average Turnover (Cr)	Marks Allotted	5
		>=100	5	
		50<= to <100	3	
		25<= to <50	2	
2	Value of Turnkey Project where NLP or Analytics was deployed as part of scope of order value more than INR 1 Crore delivered by bidder in India / across the Globe in last 5 years from the date of bid submission.	Value of Project	Marks allotted	20
		Above INR 4 Cr	20	
		Above INR 2 Cr to 4 Cr	10	
		INR 1 Cr to 2 Cr	5	
3	Team members: Project manager -1 Full time	##Mark distribution and other details in the table below		10
4	Successful implementation and demonstration of a Proof of Concept (POC) of GeM's Search engine enhancement with NLP and Machine Learning for GeM	Assessment of POC based upon Solution fitment with GeM architecture, Model evaluation and accuracy of the search results i.e. improvement in search outcome (POC success criteria defined below		40

	on sample data provided by GeM(details given below)	in detail).	
5	Technical Presentation	Capability Presentation and Demonstration on project implementation approach, methodology and processes for ensuring success	25
Total			100

Documentary evidence must be submitted for each criterion; and undertaking or declaration made by the bidder must be on the company letter head and has to be signed by an authorized signatory.

***POC Implementation for Evaluation (40 Marks):**

Bidders will require to perform a POC implementation and successful demonstration of Search Engine Accuracy Improvement using **NLP based Cognitive Search String Optimizer and Category Classifier** for sample data given for 2 product categories by GeM (Example: Desktop and Laptop). Bidders will have to showcase the POC in GeM UAT environment.

POC execution timeline is 2 Business Weeks from the date of providing sample data and go-ahead communication from GeM in this regard and Bidders should be ready for POC Demo within same timeframe or else it will be considered failed POC and will attract zero marks, which will disqualify the defaulting Bidders from Technical evaluation.

POC will be evaluated against the following **success criteria**:

1. Showcase success of Natural Language Understanding and Processing techniques on Buyer search queries by **converting Natural Language Free flow text into a structured search query**
2. **Percentage accuracy of Search Results** with Search String Optimization
3. **Correct "Product" categorization** by curation of Buyer search query by isolating feature information
4. Throughput time- 2sec
5. **RCA report to capture scenarios where accuracy is low and explain why** and how the bidder, if selected will improve model accuracy in subsequent implementation through RCA learning.

A Demo of implemented POC and presentation before the selection committee of GeM is to be made by the bidders. Based on the details submitted by the bidders in the technical proposal, technical presentation and the Demonstration of POC made by them before the selection committee of GeM, the technical evaluation of the eligible bidders will be carried out as furnished below:

The Final Technical score of the bidder will be as follows:

Technical Score (TS) = (Marks Scored by the Bidder / Total Marks) *100

The Commercial Bids of only those bidders will be opened who score minimum 80% marks in technical evaluation stage. The lowest of the technically qualified commercial bids (L1) will be the winner and awarded the project

The commercial bids shall be opened in the presence of shortlisted bidders, if they choose to be present. If the shortlisted bidders or their duly authorized representatives are not present, the commercial bids will be opened in their absence. The intimation of Date, Time and Place of opening of commercial bids will be informed separately to shortlisted bidders only.

3.2 Project Team

SL No	Job description	Evaluation / marking criteria
1.	Project Manager - 1 Full time resource Nature of Work: - Nodal person to interact with GeM and other agencies/organizations/departments as per the requirement of the assignment - Responsibilities include providing professional support and sound advice to all stakeholders <i>Duties and Responsibilities:</i> - Guide the team to cover the whole scope of work as mentioned in the RFP. - Interact with buyer and MSP organizations to understand requirements and present status of search - Review and submit the documents, reports etc. with certification. - Any other work assigned by GeM under the over-all scope - The Team lead must extend the necessary support to GeM MSP /PMU for covering/implementing / maintenance as per the scope of work. Minimum Qualifications: - Full time BE/B.Tech/ME/MTech/MCA from Tier 1 colleges in engineering / - in within top 50 NIRF ranked colleges (2019 ranking) OR - Full time flagship 2 year post graduate - in management from tier-1 college program within top 50 NIRF ranked (2019 ranking) Work Related Experience: - Minimum 10+ years progressively responsible experience in development of applications/ web interface/ ecommerce platforms/	Maximum Marks Total Experience- > 15yr ----- 5 marks 10-15 yr ----- 3 marks Relevant Experience in NLP or Analytics implementation > 2 yr ----- 3 marks 1< to =<2 yr ---- 2 marks Certifications 1 mark per certification (maximum 2 marks) Scrum Master/ PMI /PMP/ Data Science/ Analytics/ Cloud/ Machine Learning/NLP related certification

SL No	Job description	Evaluation / marking criteria
	/NLP/Machine Learning/Analytics projects and applications a) Should have worked and supervised/managed projects involving analytical and data science tools like Tableau/ Qlikview/ Periscope/ Power BI/ Kibana/R/Python etc	

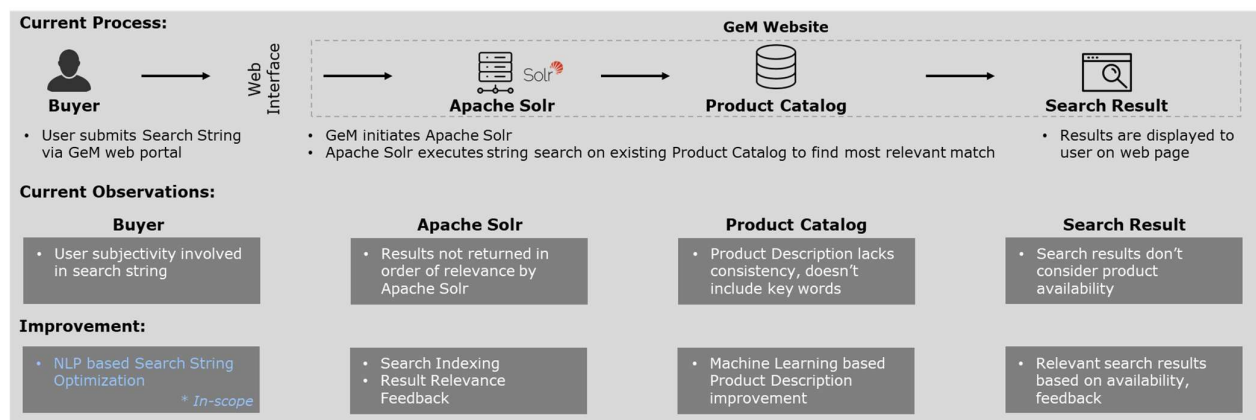
4. Existing / Current Landscape

4.1 GeM Portal Search

Currently, the Search functionality of GeM does not support Natural language based search. For example, a natural language search engine shall be able to take requests in free flow natural language text like **"Laptop 8 GB RAM"**, **"Laptop with 8 GB"** and **"need for a Laptop with 8 gb RAM"** (typed into a box), break it into parts of speech, treat them equally if intent is same despite different text, figure out which product you're looking for (**"Laptop"** in this case) — and what you aren't (Not **RAM** in this case) and turns it into the query that it can submit to the back-end search system (Apache Solr based) in order to return the correct results right back to you.

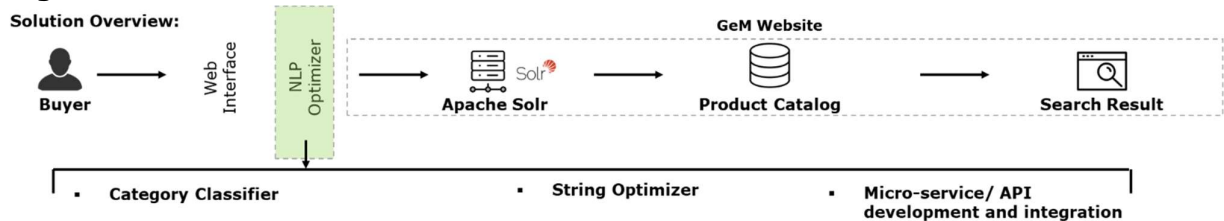
For example, the search can be enhanced search matching keywords like RAM cards apart from Laptops in the search results, if user types in **"Laptop 8 GB RAM"**.

4.2 GeM Portal Search Architecture



5. Scope of Work

Indicative Architecture of TO-BE Natural Language Processing (NLP) based Cognitive Search



This implementation will focus on building a NLP engine to curate Buyer search query by isolating Product Feature Information. Scope of work includes following activities:

Phase	Project Activity	Deliverable
Implementation & Integration	String Optimizer development	- String Optimizer to isolate Product Feature Information by focusing on words specific to Product - Perform Stop word removal, Stemming, Lemmatization, Tokenization, Normalization, Noise Removal on search string to generate optimized string
	Category Classifier model building, training, evaluation	- Category Classifier will leverage NLP based algorithms in the form of TF-IDF, word2vec, Support Vector Machine/ Naïve Bayes or any other suitable classifier algorithms to identify product/service category in a search string - Include Product Category as an input along with Search String before submitting query to Apache Solr to improve search results
	Micro-service / API development and integration	Micro-service / API development and integration - NLP Optimizer capability will be offered/ exposed in the form of micro- service/ API for it to be consumed by Web Service and Apache Solr - NLP Optimizer API will be developed and integrated with existing GeM search architecture by the selected Bidder - NLP Optimizer APIs/ Micro-services will be hosted and deployed on MeitY Empanelled Cloud Service with appropriate network, application security, performance and high availability features like Virtual Networks, Load balancing, Firewalls etc. - Selected bidder will also optimize and refurbish existing Apache SOLR search in coordination with MSP to bring the required outcome of NLP optimizer capability in the form of enhanced search results.

Phase	Project Activity	Deliverable
		MSP will provide required support and access to Selected Bidder on Apache SOLR search platform and data
Handholding (1 month)	handholding	Technical support on Model Refresh, Retraining, Fine-tuning/Evaluation for 1 month after above Go-Live
Maintenance support (3 years)	Model Refresh, Retraining, Fine-tuning/Evaluation and integration for additional categories of products /services, Troubleshooting, bug-fixing and any other activity as required for smooth and efficient utilization of related solution component deployed by the vendor for NLP solution	Updated model and search with string optimizer and category classifier for additional Categories

5.1 Training and Support

The bidder will be responsible for training GeM's employees in the areas of implementation, operations, management, error handling, system administration etc. The Training should at least cover but not limited to the following Areas:

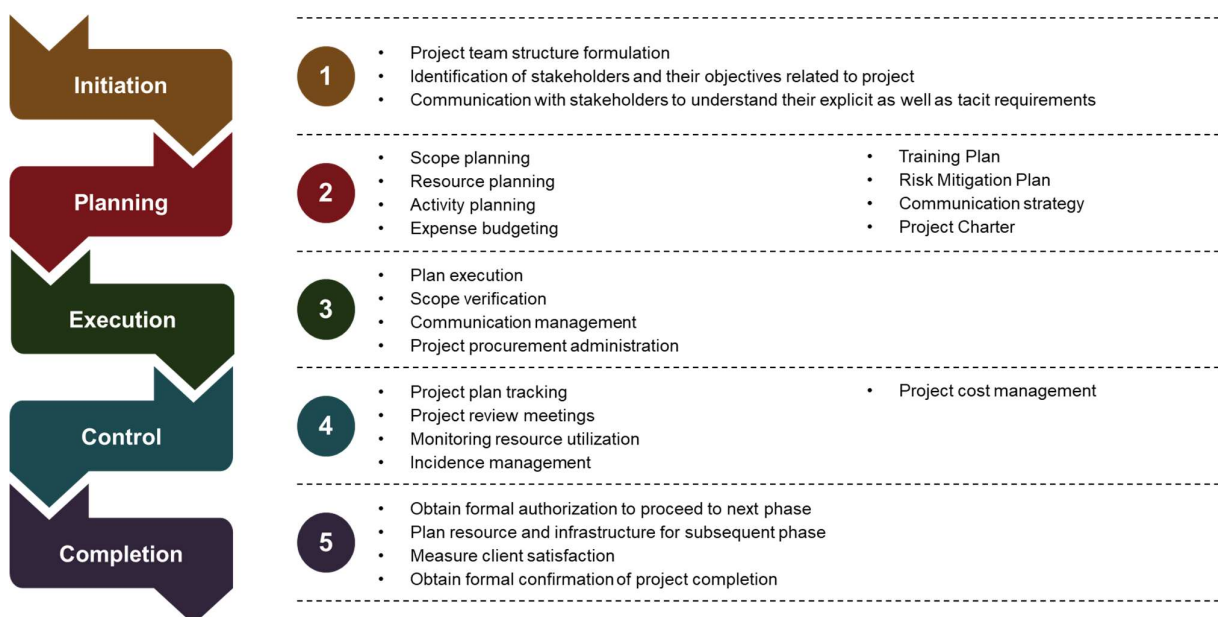
No.	Specification
1	Solution Architecture and Design
2	Technical Operations and Functionalities available in the solution proposed
3	Techniques of generating various reports from the solution provided
4	Development and deployment the proposed solution
5	Resolving User Queries
6	Advanced troubleshooting techniques

The above Scope of Work is a broad and indicative based on which GeM expects the bidder to provide a structured solution as per best industry practices applicable to this assignment. GeM also expects selected firms to provide and offer from its own experience other alternate globally best-in-the-industry models, architectures, roadmaps, implementation plans and business verticals for setting up of the Search Engine Enhancement using Natural Language Processing (NLP) for GeM Portal, which should not only make the search efficient and effective but also sustainable and as per best industry practices.

The selected Bidder will be responsible to study and work on Metadata for different product and services categories. The bidder will also create a “Named Entity Recognition” model based upon this metadata to identify the product and service features in Natural Language Text search strings

5.2 Project Management

5.2.1 Project Management Activities



5.3 Project Timelines and Deliverables

A general expected timeline of the **Project implementation + Handholding** is a maximum of 4 months from effective project initiation date followed by **Post-implementation maintenance support** for next 3 years.

The Bidder should provide a detailed Project Plan for development and implementation of the Search Engine Enhancement using Natural Language Processing (NLP) in GeM. **The bidder should define the detailed implementation approach, define various milestones with achievable timelines and work based structure as per the requirements mentioned in the RFP.** The project plan should be comprehensive, visual (e.g., Gantt chart), show all task dependencies, milestones, timelines and subsequently trackable.

5.3.1 Implementation Approach

Bidders' implementation approach should consider the below expectations –

1. The solution for Search Engine Enhancement using Natural Language Processing (NLP) is expected to be in place within 4 months from the date of acceptance of PO.
2. 3 years Maintenance support will be provided for maintaining the implemented solution for Search Engine Enhancement using Natural Language Processing (NLP)

5.4 Project Responsibilities



5.5 IT Services / Hardware / License Procurement

5.5.1 Hardware / Infrastructure Requirement

This RFP scope is for implementation and maintenance support on the NLP based Search Engine Enhancement Solution which will include Cloud services from MeitY empanelled Cloud Service Providers (CSPs) as per implementation architecture proposed by the Bidder, due to obvious benefits of Cloud based services in terms of shorter implementation cycle, scalability, reliability, fault-tolerance, performance and high availability of services

In case of MeitY empanelled Cloud based services, **only publicly available data of products and services catalog will be allowed to be stored and processed on Cloud without any Buyer or Seller's Personally Identifiable Information (PII)**

Basic Infrastructure will be provided by GeM on Government Community

Cloud (GCC) for implementation and integration with existing GeM Search engine.

- ✓ **1 Dev Server/VM with following configuration:**
 - ✓ RAM: 64 GB
 - ✓ Storage: 2.5x training dataset size
 - ✓ Operating System - Linux (RHEL or Ubuntu 16.x)
 - ✓ 1 GPU Card (16 GB)
- ✓ **1 UAT server/VM with following configuration**
 - ✓ RAM: 64 GB
 - ✓ Storage: 2.5x training dataset size
 - ✓ Operating System - Linux (RHEL or Ubuntu 16.x)
- ✓ **2 Production Servers/VMs (HA) with following configuration:**
 - ✓ RAM: 64 GB
 - ✓ Storage: 2.5x training dataset size
 - ✓ Operating System - Linux (RHEL or Ubuntu 16.x)

5.5.2 Additional Requirement:

Bidders may include optimally required infrastructure (storage, compute and platform) for the proposed solution on MeitY empanelled Cloud Virtual Networks/ Virtual Private Cloud (VPC). The projected Infrastructure requirement should be optimal for the solution.

Only publicly available data of products and services catalog will be allowed to be stored and processed on Cloud without any Buyer or Seller's Personally Identifiable Information (PII)

5.6 Service Level Agreement:

5.6.1 Service Levels-Implementation period SLA

S. No.	Service Level Description	Penalty
1	Delay in implementation of overall solution beyond 3 months	• for every day of delay, a penalty of 0.5% of invoice value . • Moreover delay beyond 7 days will invite double penalty i.e. 1%

5.6.2 Service Levels-O&M period SLA

S. No.	Service Level Description	Min SL expected	Penalty
1	Buyer Search Queries should run under 2 seconds	99.9% of the time	for every 0.5% drop, a penalty of 2% of invoice value
2	System availability-	99.9% of the time	for every 0.5% drop, a penalty of 2% of invoice value
3	Buyer search queries should return accurate results in correct product/ service category	99% of the time	for every 0.5% drop, a penalty of 2% of invoice value

5.7 Service Level Agreement

- The selected agency needs to have enough skilled manpower in position and capable of supporting the deployment and implementation of Search Engine Enhancement using Natural Language Processing (NLP) for GeM and to adhere to the scope of work.
- If the cumulative penalty under SLA exceed 15 % for two consecutive quarters, GeM will reserve the right to terminate the contract.
- In case, the agency is not in a position to deliver, support or co-operate with GeM, penalty of upto @20% of the proposed solution cost will be deducted from the payment.
- Further, GeM will be free to cancel the work order and get the work done through alternate agency (bidder) at the cost and risk of the defaulting agency. The work order will be cancelled and 10% of the total cost will be charged as cancellation charges.
- There shall be no change in the rates finalized upon award of the tender to the successful bidder for the period of implementation + three years support.
- In case of any data breach, security breach and breach of confidentiality, violation of Non-Disclosure penalty shall be applicable. The value shall be assessed on a case to case basis and based on the nature and impact of the breach.

6. Payment Milestones

No.	Payment Milestone Details	Amount (INR)
A.	Implementation of String optimizer and Category classifier	10% of value of implementation cost[AA]
B.	On completion of Category Classifier model building, training, evaluation	20% of value of implementation cost [AA]
C.	On completion of Micro-service/API development and Integration and Go-live and any other work as mentioned in scope	40% of value of implementation cost [AA]
D.	On completion of handholding phase	30% of value of implementation cost [AA]
E.	Post-implementation support for 3 years: Model Refresh, Retraining, Fine-tuning/Evaluation and integration for additional categories of products /services	1/12 th of [BB] for every quarter Monthly support rate to be paid quarterly

Note:

- Taxes extra, as applicable

[AA]= One-time Implementation , Integration and handholding of 1 month

[BB]=Maintenance support (3 years)

6.1 Commercial Quote

Phase	Project Activity	Price (INR)	Remarks
One-time Implementation ,Integration and Handholding of 1 month including the cost of MeitY Empanelled Cloud Services proposed [AA]	• String Optimizer development, • Category Classifier model building, training, evaluation and • Micro-service / API development and integration, • Handholding		Total composite value of [AA] cannot be more than 60% of C
Maintenance support (3 years)[BB]	• Model Refresh, Retraining, Fine-tuning/Evaluation and integration for additional categories of products /services • Troubleshooting, Handholding, Bug-fixing		Total composite value of [BB]% is 100% - [AA]%
Total cost		C=AA+BB	

7. Assumption & Dependencies

- **Infrastructure Access, Data Access**
 - GeM will provide environment and search API to successful Bidder for development purpose
 - The selected Bidder will get access to appropriate Product/Service Details database for purpose of developing NLP modules
 - The selected bidder will get access to existing APACHE SOLR search result API so that 'NLP Optimizer' output results (revised search query) can be tested during development
- **Out of Scope**
 - Interventions within existing SOLR search system

8. Change Management Framework

- The Bidder should provide a robust change management framework to track versioning, change history with date and user information, track migration of code from development to production, security.
- It should allow easy configuration of the environment to the production version for debugging and troubleshooting
- In case of any upgrade, patch release, security updates etc., during the contractual period, the same shall be provided to GeM by the bidder without any charge.

9. Annexure

9.1 Annexure 1: Technical Bid Covering Letter

(To be prepared on letter head of the Bidder, scanned & uploaded on E-tender portal)

To

Government e-Marketplace (GeM)

Address

Sub.: RFP for

Ref:

Dear Sir,

1. I/We, the undersigned, have carefully examined the contents of the above referred RFP document including amendments/ addendums (if any) thereof and we undertake to fully comply and abide by the terms and conditions specified there in and here by submit our Bid for the aforesaid service. Our bid for the subject RFP is unconditional and unqualified.
2. I/We offer to execute the work in accordance with the Scope of work and the Conditions of Contract of this RFP both explicit and implied.
3. I/We undertake that, in competing for (and, if the award is made to us), for executing the above contract, we will strictly observe the laws against fraud and corruption in force in India namely "Prevention of Corruption Act 1988".
4. I/We understand that:
 - (a) This bid, if found incomplete in any respect and/or if found with conditional compliance or not accompanied with the requisite Bid Security, shall be summarily rejected.
 - (b) If at any time, any amendments made or information furnished as part of this bid is found incorrect, then the bid will be rejected and the contract if awarded on the basis of such information shall be cancelled.
 - (c) GeM is not bound to accept any/ all Bid(s) it will receive.
 - (d) Until a contract is executed, this bid together with RFP Document as well as notification of Letter of Award issued by GeM shall constitute a binding Contract between us.
5. I/We declare that:
 - (a) I/We have not been blacklisted / declared ineligible by GeM or any other agency. I/We also confirm that I/We have not been declared as non-performing or debarred by GeM.
 - (b) I/We haven't been blacklisted by a Central / State Government Institution / Public Sector Undertaking / Autonomous body and there has been no litigation

with any Government Department / PSU / Autonomous body on account of similar services.

- (c) I/We have not directly or indirectly or through an agent engaged or indulged in any corrupt practice, fraudulent practice, coercive practice, undesirable practice or restrictive practice, as defined in the Contract Agreement, in respect of any tender or request for proposal issued by or any Contract entered into with GeM or any other public sector enterprise or any government, Central or State; and I/We hereby certify that we have taken steps to ensure that in conformity with the provisions of the RFP document, no person acting for us or on our behalf has engaged or will engage in any corrupt practice, fraudulent practice, coercive practice, undesirable practice or restrictive practice.

6. In the event of my / our bid being declared as successful bid, I/we agree to enter into a Contract Agreement in accordance with the format of the Contract Agreement. I/We agree not to seek any change in the aforesaid format of the Contract Agreement and agree to abide by the same.

7. I/We certify that:

- (a) I/We have not been convicted by a Court of Law or indicted or adverse orders passed by a regulatory authority which could cast a doubt on our ability to undertake the subject work or which relates to a grave offence that outrages the moral sense of the community.
- (b) Neither the bidder nor any of its Directors are the subject of criminal or civil proceedings that could be expected to adversely affect its business or its ability to bid in the present tender.
- (c) No investigation by a regulatory authority is pending either against us or against our CEO or any of our directors/ managers/ employees.
- (d) I / We don't have any conflict of interest in terms of eligibility criteria defined in this RFP document.
- (e) The information provided in this technical bid (including the attachments) as well as the financial bid is true, accurate and complete to the best of my knowledge and belief. Nothing has been omitted which renders such information misleading; and all documents accompanying my/our bid are true copies of their respective originals. I/We shall be liable for disqualification or termination of contract at any stage, if any information / declaration is found to be incorrect or false. I/We will intimate GeM promptly in case of any change in the information submitted as part of this technical bid.
- (f) I/We offer the cost of the RFP document and bid security in accordance with the RFP document as per the details furnished below:

	DD / Bankers Cheque No.	Date	Amount (Rs.)	Issuing Bank / Branch
Bid Security				

- (g) The documents in original accompanying the bid document have been submitted in a separate envelope as envisaged in the RFP document and marked appropriately.
- (h) I am the Authorized Signatory of the aforesaid company / firm and I am authorized to sign this bid on behalf of the firm / company. I am submitting

this bid after carefully reading all the terms and conditions contained in the RFP document and its addendum/ amendment, if any, and undertake to abide by the same. It is also certified that the bid is being submitted in the prescribed formats without any addition / deviation / alteration and our bid is unconditional.

We remain,

Yours Sincerely,

Name

Designation / Title of the Authorized Signatory

9.2 Annexure 2: Brief Information about the Bidder

(To be prepared on letter head of the Bidder, scanned & uploaded on E-tender portal)

Sub.: RFP for

Ref:

Brief Profile of Agency (in one page)
Number of offices with locations in India
Note: Copy of ROC

No.	Information	Details
1	Name of Bidder	
	Year of Establishment	
	Constitution of the bidder entity e.g. Government enterprise, private limited company, limited company, proprietorship / partnership firm etc	
	In case of a Government enterprise, please indicate as to whether legally and financially autonomous and operate under commercial law. (Yes / No / NA)	
	Name(s) of Directors/ Proprietors/ Partners	
2	Complete Postal Address	
	Fixed Telephone No.	
	Mobile Telephone No.	
	Email Address	
3	Bank A/c No.	
	Branch Address	
	IFSC / MICR Code	
4	Name of the Statutory Auditor/ Company Secretary/ Chartered Accountant certifying the documents along with his/her Membership number, if applicable:	

Name

Designation / Title of the Authorized Signatory

9.3 Annexure 3: Power of Attorney

Know all men by these presents, we, (name of Company and address of the registered office) do hereby constitute, nominate, appoint and authorize Mr / Ms..... son / daughter / wife of..... and presently residing at, who is presently employed with us and holding the position of as our true and lawful attorney (hereinafter referred to as the "Authorized Signatory or Attorney") to do in our name and on our behalf, all such acts, deeds and things as are necessary or required in connection with or incidental to submission of our Bid for selection as the Service Provider for "....." proposed by Government e-Marketplace, including but not limited to signing and submission of all applications, bid(s) and other documents and writings, and providing information/ responses to GeM, representing us in all matters before GeM, signing and execution of all contracts and undertakings consequent to acceptance of our bid and generally dealing with GeM in all matters in connection with or relating to or arising out of our Bid for the said Tender and/or upon award thereof to us.

AND, we do hereby agree to ratify and confirm all acts, deeds and things lawfully done or caused to be done by our said Authorised Signatory or Attorney pursuant to and in exercise of the powers conferred by this Power of Attorney and that all acts, deeds and things done by our said Authorised Representative/ Attorney in exercise of the powers hereby conferred shall and shall always be deemed to have been done by us.

IN WITNESS WHEREOF WE,THE ABOVE NAMED PRINCIPAL HAVE EXECUTED THIS POWER OF ATTORNEY ON THIS DAY OF, 2019

For
(Signature)
(Name)
(Designation)
(Address)

Witness:

- 1.
- 2.

Notarized

Accepted
(Signature)
(Name)
(Designation)
(Address)

Notes:

The mode of execution of the Power of Attorney should be in accordance with the procedure, if any, laid down by the applicable law and the charter documents of the executants(s) and when it is so required the same should be under common seal affixed in accordance with the required procedure. The Power of Attorney should be executed on a non-judicial stamp paper of appropriate denomination and should be duly notarized by a notary public.

Wherever required, the Bidder should submit for verification the extract of the charter documents and other documents such as a resolution/power of attorney in favour of the person executing this Power of Attorney for the delegation of power hereunder on behalf of the Bidder.

For a Power of Attorney executed and issued overseas, the document will also have to be legalised by the Indian Embassy and notarised in the jurisdiction where the Power of Attorney is being issued. However, Bidders from countries that have signed the Hague Legislation Convention 1961 need not get their Power of Attorney legalised by the Indian Embassy if it carries a conforming Apostles certificate.

9.4 Annexure 4: Format of Submission of Work Experience / Technical Strength of Bidder

Sub.: RFP for

Ref:

Client Details		Name of Work / Project
Client Name		
Address		
Name of Contact Person		Location
Contact No.		Approximate Value of Project (INR)
Contact Email ID (Official email ID)		
Start Date		Present Status of Project (as per the Bidders mandate)
Completion Date		
Present Status		
Application Users		
Name of Persons Deployed (Key Persons Only)		
Detailed Features of Project Executed		

Name

Designation / Title of the Authorized Signatory

Dated

Note: Bidder should submit relevant details of each projects in this format and should enclose -

1. Go-live / acceptance / completion Certificate/ Client certificate issued by the customer;
 2. Work Order / Purchase order / Copy of contract / Letter of Award
 3. Highlighting detailed scope of project implemented within the last 5 financial years prior to the Bid due date as proof for the same
 4. In case the bidder is unable to provide any of the above mentioned details from customer due to Non-Disclosure Agreement(NDA), *self- certification from MD/CEO/President of the Indian office may be provided stating the:*
 - a) *Details of the project*
- Constraints of the NDA A copy of NDA is to be provided.*

9.5 Annexure 5: Affidavit on Litigation / Arbitration History

(To be prepared on Non-Judicial Stamp Paper of Value Rs. 100/-)

Name of the Bidder:

The Bidder should provide information on any history of litigation or arbitration resulting from the contracts executed for GeM the last five years or currently under execution.

Year	Award for or against Bidders	Name of Client, Cause of Litigation & Matter in Dispute	Disputed Amount (Current Value in INR)	Actual Awarded Amount in INR

INFORMATION REGARDING CURRENT LITIGATION, DEBARRING / EXPELLING OF BIDDER OR ABANDONMENT OF WORK BY BIDDER

1	Has the Bidder or its constituent partners history of litigation awarded against him?	☐ Yes ☐ No
	If yes, give details	
2	Has the Bidder or any of its Constituent Partners or Directors been debarred / expelled, during the last 5 years as on the date of bid, on the basis of their performance in any assignment or for any other reason including fraudulent and corrupt practices, etc?	☐ Yes ☐ No
	If yes, give details including period of debarment	
3	Has the Bidder or any of its Constituent Partners or Directors failed to perform OR any contract, during the last 5 years as on the date of bid, as evidenced by imposition of a penalty or a judicial pronouncement or arbitration award or has been expelled from any work or contract or have had any contract terminated for breach OR their part or abandoned any contract work or has been declared bankrupt?	☐ Yes ☐ No
	If yes, give details	

Note: If any information in this affidavit is found to be incorrect or concealed, prequalification / bid will be summarily rejected. Based on information in this affidavit, GeM, in its sole discretion shall take a decision to prequalify the Bidder

9.6 Annexure 6: Format of Certificate in respect of Bidder's Average Annual Turnover
(Certificate to be given by Statutory Auditor/ Chartered Accountant)

Sub.: RFP for

Ref:

Dated:

Certificate of Annual Turnover and Network

It is certified that we have examined the audited books of accounts of M/s. _____
(name and address of the bidder) _____ and the details of the
annual turnover from ITES services during the last three financial years and net worth as on
31.03.2019 are as under:

1. Annual Turnover

Amount in Rs.

Financial Year	Amount in figures	Amount in words
FY 2016 - 17		
FY 2017 - 18		
FY 2018 - 19		
Average of 3 Years		

2. Network

Amount in Rs.

As on	Amount in figures	Amount in words
31-03-2019		

(Signature of Statutory Auditor)

Name

Seal

Place

For (Name of Accounting Firm
Membership no and rubber stamp))

9.7 Annexure 7: Format for Financial Bid Submission

(For sample only, actual Format to be downloaded from e-tender portal for on-line submission)

Sub.: RFP for

Ref:

Dear Sir

Subject: Services for [name of assignment].

We, the undersigned, offer to provide the services for [name of assignment] in accordance with your Request for Proposal dated [date] and our Proposal. Our attached Financial Proposal is for the sum of [amount(s) in words and figures] (excluding GST but including any other tax(es)). I/We, the undersigned having examined the above referred RFP including addendums thereof and, hereby offer to submit our bid to undertake the subject assignment with total bidvalue as per milestone and break-up furnished below.

Phase	Project Activity	Price (INR)	Remarks
One-time Implementation ,Integration and Handholding of 1 month[A]	String Optimizer development, Category Classifier model building, training, evaluation, Named Entity Recognition for metadata and Micro-service / API development and integration		Total composite value of [A] cannot be more than 60% of [C]
Maintenance support (3 years)[B]	Model Refresh, Retraining, Fine- tuning/Evaluation and integration for additional categories of products /services		Total composite value of B is 100%-[A]%
Total cost		C=A+B	

Note:

1. I/We do hereby confirm that my/ our Bid Price include all statutory taxes/ levies but excluding GST (as applicable on the services). I/ We also declare that any tax, surcharge on tax and / or any other levies, if altered in future and payable under the law, the same shall be borne by me/ us.

2. The quoted rates for all items shall remain unchanged for entire term of the Contract Agreement.
3. This bid is **valid** for a period of **120 calendar days** from the bid due date
4. I/ We, understand that the
 - a. applicable GST (as applicable on services) shall be reimbursed by GeM separately on production of proof of payment and CA certificate; and
 - b. TDS will be deducted against payments as per Applicable Law.
 - c. In case of any difference in figures and words, the amount mentioned in words will prevail.

Note: The above cost should include all out of pocket expenses for lodging, travel etc within Delhi NCR. It should also include cost of mobile, laptop, software etc to be used by the team deployed by the bidding agency for the project. For any travel outside Delhi / NCR, the same will be reimbursed on actuals and as per GeM HR Policy.

Yours sincerely,

Name

Designation / Title of the Authorized Signatory

9.8 Annexure 8: Mutual Nondisclosure Agreement

[To be executed on stamp paper of appropriate value]

CORPORATE NON-DISCLOSURE AGREEMENT

This Non-Disclosure Agreement ("Agreement") is entered on this day of, 2019 by and between

Government e-Marketplace_(GeM)_, a Private Limited Company incorporated under the Companies Act, 1956, having its registered office located at 2nd Floor, Jeevan Tara Building, Sardar Patel Marg, Opp. Dak Bhawan, New Delhi – 110001_ (herein after referred to as "Disclosing Party"/"GeM", which expression shall unless excluded by or repugnant to the context deemed to include its successors and permitted assigns) of the First Part.

And

_____, a _____ company, registered under _____, having its registered office at _____ (hereinafter called the "Receiving Party"/"_____", which expression shall unless repugnant to the context or meaning thereof mean and be deemed to include its successors and permitted assigns) of the Second Part.

(GeM and _____ shall be individually referred hereinafter as "Party" and collectively as "Parties").

Background

- A. The Parties have entered into an service agreement dated _____ (hereinafter referred as "_____"), wherein Receiving Party has been engaged as a service provider for _____ in GeM (the "Purpose").
- B. In connection with the Purpose and by virtue of the contracted activities, _____ will be exposed to certain information of GeM and other stakeholders which may be confidential and proprietary in nature. _____ agrees that the following terms and

conditions shall apply when GeM discloses any confidential information under this Agreement.

1. **Definitions**

In this Agreement the following terms shall have the following meanings:

“Confidential Information” shall mean any information disclosed, provided or shared by or on behalf of Disclosing Party to the Receiving Party, which does not fall within the exceptions provided in clause 3.3 of this Agreement.

2 **Supply and Use of Information**

- 2.1 In consideration of the terms of the Agreement and the disclosures contemplated by, and of the obligations set out in, this Agreement, Receiving Party agrees, save as otherwise expressly permitted by this Agreement:

2.1.1 to keep the Disclosing Party’s Confidential Information, confidential;

2.1.2 not to use the Disclosing Party’s Confidential Information except in connection with the Purpose; and

2.1.3 to disclose the Disclosing Party’s Confidential Information only on a need to know basis in connection with the Purpose to only such persons/entities who have agreed in writing to abide by the terms and conditions of this NDA or, where requested by the Disclosing party, have executed an Individual non-disclosure agreement with the Disclosing Party in a format approved by the Disclosing Party.

- 2.2 Disclosing Party confirms that it has the right to disclose any Confidential Information under this Agreement.

3 **Confidentiality**

- 3.1 The Receiving Party shall protect the Confidential Information of the Disclosing Party through the exercise of the precautions set out in this Agreement and with no less protection and care than it customarily uses in preserving and safeguarding its own confidential information of similar nature.

3.2 The Receiving Party agrees that it shall keep the Confidential Information of the Disclosing Party confidential in accordance with the terms of this Agreement subject to the exceptions in clause 3.3 below, and the permitted disclosures in clause 3.4 below.

3.3 This Agreement shall not apply to any information which:

3.3.1 is publicly available when received or subsequently becomes publicly available through no fault of the Receiving Party; or

3.3.2 is or has been acquired from a third party who owes no obligation of confidence in respect of the information; or

3.3.3 is already in the Receiving Party's possession without the obligation of confidentiality; or

3.3.4 is or has been independently developed by the Receiving Party or was known to it prior to receipt.

3.4 Notwithstanding clause 2.1 above, the Receiving Party shall not disclose any Confidential Information of the Disclosing Party without the prior written consent of the Disclosing Party.

4 **Term**

Upon signature by both the parties, this Agreement shall come into effect from the _____ (Effective Date). for a term of three 3 years post expiry or termination of the Master Service Agreement.

5 **General**

5.1 No delay by either party in enforcing any of the terms or conditions of this Agreement shall affect or restrict that party's rights and powers arising under this Agreement. No waiver or amendment of any term or condition of this Agreement will be effective unless made in writing and signed by both parties.

5.2 Subject to the _____, this Agreement forms part of the entire contract between the parties relating to Confidential Information disclosed in connection with

the Purpose and it replaces and supersedes any previous proposals, correspondence, understandings or other communications whether written or oral relating to the subject matter hereof.

- 5.3 If any provision of this Agreement is determined to be invalid in whole or in part, the remaining provisions shall continue in full force and effect as if this Agreement had been executed without the invalid provision.

6 Governing law and jurisdiction

This Agreement is governed by and shall be construed in accordance with the laws of India. In the event of dispute, the disputes shall be resolved in accordance with the dispute resolution mechanism agreed in the _____. The competent courts of New Delhi shall have jurisdiction in connection with this Agreement.

The parties have caused this Agreement to be executed by their duly authorized representatives, and made effective from the Effective Date first written above.

SIGNED for and on behalf of:- _____ Signature: Name: _____ Title: Witness:	SIGNED for and on behalf of:- GeM Signature: Name: _____ Title: Witness:
---	--

Signature: Name: Title:	Signature: Name: Title:
--	--

**** Note- Further team deployed will sign individual NDAs**

9.9 Annexure 9: Performance Bank Guarantee

BG No.:

Date:

1. In consideration of you, Government eMarketplace, Special Purpose Vehicle(hereinafter referred to as the —Authority which expression shall, unless repugnant to the context or meaning thereof, include its administrators, successors and assigns) having agreed to receive the proposal of [Name of company], (hereinafter referred to as the—Bidder which expression shall unless it be repugnant to the subject or context thereof include its successors and assigns), for appointment as Consulting Agency for [name of assignment] pursuant to the RFP Document dated [date] issued in respect of the Assignment and other related documents including without limitation the draft work order for services (hereinafter collectively referred to as —RFP Documents), we [Name of the Bank] having our registered office at [registered address] and one of its branches at [branch address] (hereinafter referred to as the —Bank), at the request of the Bidder, do hereby in terms of relevant clause of the RFP Document, irrevocably, unconditionally and without reservation guarantee the due and faithful fulfilment and compliance of the terms and conditions of the RFP Document by the said Bidder and unconditionally and irrevocably undertake to pay forthwith to the Authority an amount of Rs. [in figures] ([in words]) (hereinafter referred to as the —Guarantee) as our primary obligation without any demur, reservation, recourse, contest or protest and without reference to the Bidder if the Bidder shall fail to fulfil or comply with all or any of the terms and conditions contained in the said RFP Document.

2. Any such written demand made by the Authority stating that the Bidder is in default of the due and faithful fulfilment and compliance with the terms and conditions contained in the RFP Document shall be final, conclusive and binding on the Bank. We, the Bank, further agree that the Authority shall be the sole judge to decide as to whether the Bidder is in default of due and faithful fulfilment and compliance with the terms and conditions contained in the RFP Document including, Document including without limitation, failure of the said Bidder to keep its Proposal valid during the validity period of the Proposal as set forth in the said RFP Document, and the decision of the Authority that the Bidder is in default as aforesaid shall be final and binding on us, notwithstanding any differences between the Authority and the Bidder or any dispute pending before any court, tribunal, arbitrator or any other authority.

3. We, the Bank, do hereby unconditionally undertake to pay the amounts due and payable under this Guarantee without any demur, reservation, recourse, contest or protest and without any reference to the Bidder or any other person and irrespective of whether the claim of the Authority is disputed by the Bidder or not, merely on the first demand from the Authority stating that the amount claimed is due to the Authority by reason of failure of the Bidder to fulfill and comply with the terms and conditions contained in the RFP Document including without limitation, failure of the said Bidder to keep its Proposal valid during the validity period of the Proposal as set forth in the said RFP Document for any reason whatsoever. Any such demand made on the Bank shall be conclusive as regards amount due and payable by the Bank under this Guarantee. However, our liability under this Guarantee shall be restricted to an amount not exceeding Rs. [in figures] ([in words]).

4. This Guarantee shall be irrevocable and remain in full force for a period of 60 (sixty) days from the Proposal Due Date and a further claim period of thirty (30) days or for such extended period as may be mutually agreed between the Authority and the Bidder, and agreed to by the Bank, and shall continue to be enforceable until all amounts under this Guarantee have been paid.

5. The Guarantee shall not be affected by any change in the constitution or winding up of the Bidder or the Bank or any absorption, merger or amalgamation of the Bidder or the Bank with any other person.

6. In order to give full effect to this Guarantee, the Authority shall be entitled to treat the

Bank as the principal debtor. The Authority shall have the fullest liberty without affecting in any way the liability of the Bank under this Guarantee from time to time to vary any of the terms and conditions contained in the said RFP Document or to extend time for submission of the Proposals or the Proposal validity period or the period for conveying of Letter of Acceptance to the Bidder or the period for fulfillment and compliance with all or any of the terms and conditions contained in the said RFP Document by the said Bidder or to postpone for any time and from time to time any of the powers exercisable by it against the said Bidder and either to enforce or forbear from enforcing any of the terms and conditions contained in the said RFP Document or the securities available to the Authority, and the Bank shall not be released from its liability under these presents by any exercise by the Authority of the liberty with reference to the matters aforesaid or by reason of time being given to the said Bidder or any other forbearance, act or omission on the part of the Authority or any indulgence by the Authority to the said Bidder or by any change in the constitution of the Authority or its absorption, merger or amalgamation with any other person or any other matter or thing whatsoever which under the law relating to sureties would but for this provision have the effect of releasing the Bank from its such liability.

7. Any notice by way of request, demand or otherwise hereunder shall be sufficiently given or made if addressed to the Bank and sent by courier or by registered mail to the Bank at the address set forth herein.

8. We undertake to make the payment on receipt of your notice of claim on us addressed to [Name of bank along with branch address] and delivered at our above branch which shall be deemed to have been duly authorized to receive the said notice of claim.

9. It shall not be necessary for the Authority to proceed against the said Bidder before proceeding against the Bank and the guarantee herein contained shall be enforceable against the Bank, notwithstanding any other security which the Authority may have obtained from the said Bidder or any other person and which shall, at the time when proceedings are taken against the Bank hereunder, be outstanding or unrealized.

10. We, the Bank, further undertake not to revoke this Guarantee during its currency except with the previous express consent of the Authority in writing.

11. The Bank declares that it has power to issue this Guarantee and discharge the obligations contemplated herein, the undersigned is duly authorized and has full power to execute this Guarantee for and on behalf of the Bank.

12. For the avoidance of doubt, the Banks liability under this Guarantee shall be restricted to Rs. [in figures] ([in words]). The Bank shall be liable to pay the said amount or any part thereof only if the Authority serves a written claim on the Bank in accordance with paragraph 8 hereof, on or before [date].

Signed and Delivered by [name of bank]

By the hand of Mr. /Ms. [name], [designation] and authorized official.

(Signature of the Authorized Signatory)

(Official Seal)

Notes:

- The Bank Guarantee should contain the name, designation and code number of the officer(s) signing the Guarantee
- The address, telephone number and other details of the Head Office of the Bank as well as of issuing mentioned on the covering letter of issuing Branch.

Annexure 10 : Self-certification of Minimum Eligibility and of not being blacklisted

[Location, Date]

It is certified that [name of applicant] is a registered firm and has not been blacklisted by any Central / State/ Public Sector undertaking in India as on the date of bid submission.

If at any time it is found out that the Consulting Agency did not have the capabilities as enumerated above, GeM may put the Consulting Agency in negative list without prejudice to any other civil/ criminal action under the law and forfeiture of the earnest money deposit and in due course the performance guarantee in lieu of penalty.

Annexure 13- Format for CV of the professional staff proposed

1. Name				
2. Position:				
3. Date of Birth				
4. Education:				
5. Employment Record	From	To	Company	Position Held
6. Brief Profile	Years of experience etc.			
7. Countries of Work Experience				
8. Languages				
9. Work Undertaken that Best Illustrates Capability to Handle the Task Assigned				
<u>Project 1 :</u> Year: Location: Client: Position Held: Main features: Activities Performed: <u>Project N :</u> Year: Location: Client: Position Held: Main features: Activities Performed:				

10. Certification

I, certify that to the best of my knowledge and belief, this CV correctly describes myself, my qualifications, and my experience. I understand that any willful misstatement described herein may lead to my disqualification or dismissal, if engaged.

Date: _____

Signature of staff member/ Authorized signatory
Day/Month/Year

Annexure 14-Standard Form of Work Order

STANDARD FORM OF WORK ORDER FOR APPOINTMENT OF CONSULTING AGENCY

Between

[Name of client]

[Name of CONSULTING AGENCY]

[Date]

I. Form of Work Order

Work order to undertake [name of assignment]

The Government eMarketplace, Jeevan Bharti Building, Janpath , New Delhi-110001, India, hereinafter referred to as the “Client” which expression unless repugnant to context or meaning thereof shall include its successors, affiliates and assigns, has:

- a) requested the Consulting Agency to provide certain services as defined in the General Conditions attached to this work order (hereinafter called the “Services”); and
- b) The Consulting Agency, having represented to the Client that they have the required professional skills, personnel and technical resources, have agreed to provide the services on the terms and conditions set forth in this assignment.

NOW THEREFORE the Client hereto hereby agrees as follows:

1. The following documents attached hereto shall be deemed to form an integral part of this work order:
 - Appendix A: Terms of reference containing, inter-alia, the Description of the Services and reporting requirements,
 - Appendix B: Cost Estimate
 - Appendix C: Copy of Bank Guarantee for Performance Security [in the format given in Annexure A]
2. The mutual rights and obligations of the Client and the Consulting Agency shall be as set forth in the work order; in particular:
 - a) The Consulting Agency shall carry out the Services in accordance with the provisions of the work order; and
 - b) Client will make payments to the Consulting Agency in accordance with the provisions of the work order.

1.1 Commencement, completion, modification and termination of work order

A. Effectiveness of work order: This Work order shall be effective from the date of issue by the client

or date of receipt of the work order by the consulting agency.

- B. Commencement of Services: The Consulting Agency shall commence the Services from the date notified by the Client.
- C. Expiration of work order: Unless terminated earlier pursuant to relevant clauses in this work order hereof, this work order shall expire when Services have been completed and all payments have been made at the end of such time period after the Effective Date. Client reserve the right to extend the contract as mentioned in FORM 4 B, including same terms and conditions.
- D. Modification: Modification of the terms and conditions of this work order, including any modification of the scope of the Services or of the work order Price, may only be made by written agreement between the Parties, except for the fact that client reserve the right at his discretion to extend the contract as mentioned in FORM 4 B, including same terms and conditions.

1.2 Force Majeure

- A. Neither party will be liable in respect of failure to fulfil its obligations, if the said failure is entirely due to Acts of God, Governmental restrictions or instructions, natural calamities or catastrophe, epidemics or disturbances in the country. Force Majeure shall not include (i) any event which is caused by the negligence or intentional action of a Party or by or of such Party's agents or employees, nor (ii) any event which a diligent Party could reasonably have been expected both to take into account at the time of being assigned the work, and avoid or overcome with utmost persistent effort in the carrying out of its obligations hereunder.
- B. A Party affected by an event of Force Majeure shall immediately notify the other Party of such event, providing sufficient and satisfactory evidence of the nature and cause of such event, and shall similarly give written notice of the restoration of normal conditions as soon as possible.
- C. No Breach of Work order: The failure of a party to fulfil any of its obligations under the Work order shall not be considered to be a breach of, or default under this Work order insofar as such inability arises from an event of Force Majeure, provided that the Party affected by such an event:
 - a) Has taken all precautions, due care and reasonable alternative measures in order to carry out the terms and conditions of this Work order, and
 - b) Has informed the other party as soon as possible about the occurrence of such an event.
 - c) The dates of commencement and estimated cessation of such event of Force Majeure; and
 - d) The manner in which the Force Majeure event(s) affects the Party's

obligation(s) under the Work order.

- D. Neither Party shall be able to suspend nor excuse the non- performance of its obligations hereunder unless such Party has given the notice specified above.
- E. **Extension of Time:** Any period within which a Party shall, pursuant to this Work order, complete any action or task, shall be extended for a period equal to the time during which such Party was unable to perform such action as a result of Force Majeure.
- F. **Payments:** During the period of their inability to perform the Services as a result of an event of Force Majeure, the Consulting Agency shall be entitled to continue to be paid under the terms of this Work order, as well as to be reimbursed for additional costs reasonably and necessarily incurred by them during such period for the purposes of the services and in reactivating the services after the end of such period.

13 Termination

- A. Any side (Client or the Consulting Agency) should be able to give notice of 3 months for the termination of Project. If the Agency decides to terminate the project, then the client will forfeit the Performance Guarantee.
- B. **By the client:** The Client may terminate this Work order, written notice of termination to the Consulting Agency, to be given after the occurrence of any of the events specified in this clause:
 - a) if the Consulting Agency do not remedy a failure in the performance of their obligations under the Work order, within a period of seven (7) days, after being notified or within such further period as the Client may have subsequently approved in writing;
 - b) within fifteen (15) days, if the Consulting Agency become insolvent or bankrupt;
 - c) if, as the result of Force Majeure, the Consulting Agency are unable to perform a material portion of the Services for a period of not less than fifteen (15) days;
 - d) within fifteen (15) days, if the Consulting Agency fails to comply with any final decision reached as a result of arbitration proceedings pursuant to relevant clauses hereof;
 - e) within seven (7) days, if the Consulting Agency submits to the Client a false statement which has a material effect on the rights, obligations or interests of the Client. If the Consulting Agency places itself in position of conflict of interest or fails to disclose promptly any conflict of interest to the Client;
 - f) within seven (7) days, if the Consulting Agency, in the judgment of the Client has engaged in Corrupt or Fraudulent Practices in competing for or in executing the Work order;
 - g) if the Client, in its sole discretion and for any reason whatsoever, within a period of fifteen

(15) days decides to terminate this Work order.

- C. **Payment upon termination:** Upon termination of this Work order, the Client will make the following payments to the Consultants:
- a) Remuneration pursuant to relevant clauses for Services satisfactorily performed prior to the effective date of termination;
 - b) If the Work order is terminated, the Consulting Agency shall not be entitled to receive any agreed payments upon termination of the Work order. However, the Client may consider to make payment for the part satisfactorily performed on the basis of the quantum merit as assessed by it, in its sole discretion, if such part is of economic utility to the Client. Under such circumstances, upon termination, the Client may also impose liquidated damages as per the provisions of relevant clauses of this Work order. The Consulting Agency will be required to pay any such liquidated damages to Client within 30 days of termination date.
- D. **Disputes about Events of Termination:** If either Party disputes termination of the work order under relevant clauses hereof, such Party may, within forty-five (45) days after receipt of notice of termination from the other Party, refer the matter to arbitration under relevant clauses hereof, and this Work order shall not be terminated on account of such event except in accordance with the terms of any resulting arbitral award.

14 Intellectual Property

- A. **Commission to own intellectual property created:** All rights to any intellectual property conceived or produced by the Consultant for the Client in the course of performing the Consultancy Services and all information (including information that is in electronic form), working papers, reports or other papers collected or produced by the Consultant for the purpose of providing the Consultancy Services are the property of the Client from the date that property is created or developed and the Consultant waives in favour of the Client any moral rights that the Consultant may have.
- B. **Existing intellectual property:** Despite anything to the contrary contained in this Agreement, it is understood and agreed that the Consultant shall retain all of its rights in its proprietary information including, without limitation, its methodologies and methods of analysis, ideas, concepts, expressions, know how, methods, techniques, skills, knowledge and experience possessed by the Consultant prior to, or acquired by the Consultant during, the performance of this Agreement and the Consultant will not be restricted in any way with respect to the same.
- C. **IPR for any bespoke solution developed during the implementation of this project must lie**

with GeM.

- D. The bidder will be obliged to share the “Source Code” of the application with GeM which shall be free to share it with other government departments.
- E. **On termination or completion:** Not more than five (5) Business Days following the date of termination of this Agreement (for whatever reason) or completion of the Consultancy Services, the Consultant will deliver to the Client all information (including information that is in electronic form), Confidential Information, intellectual property, working papers, reports or other papers that are the property of the Client.

15 Obligations of the Consulting Agency

- A. **General:** The Consulting Agency shall perform the Services and carry out their obligations hereunder with all due diligence, efficiency and economy, in accordance with generally accepted professional techniques and practices, and shall observe sound management practices, and employ appropriate advanced technology and safe methods. The Consulting Agency shall always act, in respect of any matter relating to this Work order or to the Services, as faithful advisers to the Client, and shall at all times support and safeguard the
- B. Client’s legitimate interests in any dealings with Sub- consultants or third parties.

16 Conflict of interest

- A. **Prohibition of Conflicting Activities:** Neither the Consulting Agency nor their Sub-consultants nor the Personnel shall engage, either directly or indirectly, in any of the following activities:
 - a) during the term of this Work order, any business or professional activities which would conflict with the activities assigned to them under this Work order; and
 - b) after the termination of this Contact, such other activities as may be specified in the Contract.
 - c) during the term of this work order, the team members allotted by the Consulting Agency to this project may not work with any other agency involved in setting up of an e-commerce portal or a marketplace.
- B. **Confidentiality:** The Consulting Agency, their Sub-consultants, and the Personnel of either of them shall not, either during the term or after the expiration of this Work order, disclose any proprietary or confidential information relating to the Project, the Services, this Contact or the Client’s business or operations without the prior written consent of the Client.
- C. **Documents Prepared by the Consulting Agency to be the Property of the Client:** All designs, reports, other documents and software submitted by the Consulting Agency

pursuant to this work order shall become and remain the property of the Client, and the Consulting Agency shall, not later than upon termination or expiration of this Work order, deliver all such documents and software to the Client, together with a detailed inventory thereof. The Consulting Agency may retain a copy of such documents and software. Restrictions about the future use of these documents and software, if any, shall be specified in the Contract.

- D. Liability of the Consulting Agency: Subject to additional provisions, if any, in this work order the Consulting Agency's liability under this Work order shall be as provided by the Applicable Law. Limitation of liability is capped at 100% of the project value ()
- E. Professional Liability Insurance: Consulting Agency will maintain at its expense, Professional Liability Insurance including coverage for errors and omissions caused by Consulting Agency negligence, breach in the performance of its duties under this Work order from an Insurance Company permitted to offer such policies in India, for a period of one year beyond completion of Services commencing from the Effective Date, (i) For an amount not exceeding one time the total payments for Professional Fees made or expected to be made to the Consulting Agency hereunder or (ii) the proceeds, the Consulting Agency may be entitled to receive from any insurance maintained by the Consulting Agency to cover such a liability, whichever of (i) or (ii) is higher with a minimum coverage of [insert amount and currency].

17 Obligations of the client

- A. Assistance and Exemptions: The Client will use its best efforts to ensure that the Government will provide the Consulting Agency with work permits and such other documents as necessary to enable the Consulting Agency to perform the Services:
- B. Issue to officials, agents and representatives of the Government all such instructions as may be necessary or appropriate for the prompt and effective implementation of the Services: -

18 Payments to the Consulting Agency

No.	Payment Milestone Details	Amount (INR)	Remarks
A.	Implementation of String optimizer and Category classifier	10% of value of implementation cost[A]	
B.	Before start of Micro-service/API development and Integration	20% of value of implementation cost [A]	
C.	On completion of Micro-service/API development and Integration and Go-live	40% of value of implementation cost [A]	

D.	On completion of handholding phase	30% of value of implementation cost [A]	
E.	Post-implementation support for 3 years: Model Refresh, Retraining, Fine-tuning/Evaluation and integration for additional categories of products /services	1/12th of [B] for every quarter Monthly support rate to be paid quarterly	

Note:

- Taxes extra, as applicable

[A]= One-time Implementation

- ,Integration and handholding of 1 month

[B]=Maintenance support

- (3 years)

Upon achievement of the above-mentioned milestones, the invoices should be submitted along with complete details of the work undertaken, supporting documents and bills (if required) as well as copies of the work/ material / produced for which the bills are submitted.

- The payment shall be released only after acceptance of the required work detailed in the RFP Document.
- GST shall be paid as applicable.
- For facilitating Electronic transfer for funds the selected agency will be required to indicate the name of the Bank and Branch, account number (i.e. bank names, IFSC Code and Bank A/c No.) and also forward a cheque leaf duly cancelled to verify the details furnished. These details should also be furnished on the body of every bill submitted for payments by the selected agency.
- Currency: The price is payable in local currency i.e. Indian Rupees.
- Payment for Additional Services: For the purpose of determining the remuneration due for additional services as may be agreed under relevant clauses for modification in this work order.

19 Financial Incentives:

Apart from above payments on milestone achievements, there will be following additional Performance based financial incentives on overachieving some targets **above a baseline target** during the 1st year of Post-implementation support for 3 years:

Baseline Target: 95% accuracy of NLP model

Target	Financial incentive	Payment
1% improvement of NLP model accuracy above baseline target i.e. 96% overall model accuracy	5% of 1/3 rd of the maintenance support cost [B] above in Section 1.8	End of 1 st quarter of 1 st year of support
Another 1% improvement of NLP model accuracy above baseline target i.e. 97% overall model accuracy	5% of 1/3 rd of the maintenance support cost [B] above in Section 1.8	End of 2 nd quarter of 1 st year of support
Another 1% improvement of NLP model accuracy above baseline target i.e. 98% overall model accuracy	5% of 1/3 rd of the maintenance support cost [B] above in Section 1.8	End of 3 rd quarter of 1 st year of support
Another 1% improvement of NLP model accuracy above baseline target i.e. 99% overall model accuracy	5% of 1/3 rd of the maintenance support cost [B] above in Section 1.8	End of 4 th quarter of 1 st year of support

The accuracy of the test of NLP implementation will be measured by the F score. The F score, also called the F1 score or F measure, is a measure of the test's accuracy. The F score is defined as the weighted harmonic mean of the test's precision and recall. This score is calculated according to:

$$F_1 = \left(\frac{\text{recall}^{-1} + \text{precisior}^{-1}}{2} \right)^{-1} = 2 \cdot \frac{\text{precisior} \cdot \text{recall}}{\text{precision} + \text{recall}}$$

with the precision and recall of a test taken into account. Precision, also called the positive predictive value, is the proportion of positive results that truly are positive [the number of correct positive results/ number of all positive results returned by the classifier]. Recall, also called sensitivity, is the ability of a test to correctly identify positive results to get the true positive rate [the number of correct positive results/ number of all relevant samples]. The F score reaches the best value, meaning perfect precision and recall, at a value of 1. The worst F score, which means lowest precision and lowest recall, would be a value of 0. F1 score of 0.95 will be the baseline. The bidder will have to achieve F1 score of 0.95 on a test data set. Training: test data set will be in the ratio of 80:20 in the overall data set.

1.10 Settlement of disputes

- A. Amicable Settlement: The Parties shall use their best efforts to settle amicably all disputes arising out of or in connection with this Work order or its interpretation.
- B. Disputes Settlement: Any dispute between the Parties as to matters arising out of and relating to this Work order that cannot be settled amicably within thirty (30) days after receipt by one Party of the other Party's request for such amicable settlement may be submitted by either Party for settlement in accordance with the provision specified in the Contract or all disputes shall be finally settled by Chairperson GEM SPV.
- C. Any grievance regarding penalty shall be first decided/resolved at the level of CEO GeM and

with final decision of Chairperson, GeM SPV, whose decision shall be final.

- D. Alternate Disputes Resolution: Any dispute between the Parties as to matters arising out of and relating to this Work order that cannot be settled amicably within thirty (30) days after receipt by one Party of the other Party's request for such amicable settlement may be submitted by either Party for settlement in accordance with the provision specified in the Contract or all disputes shall be finally settled by the sole arbitrator as mutually appointed by the two parties. Arbitration proceedings shall be held at New Delhi, India. The decision of the arbitration shall be final and binding upon both the parties.

1.11 Responsibility for accuracy of project documents

The Consulting Agency shall be responsible for accuracy of the estimate and all other details prepared by him as part of these services. He shall indemnify the client against any inaccuracy in the work, which might surface during implementation of the project.

1.12 Liquidated damages

- A. If the selected Consultant fails to complete the Assignment, within the period specified under the work order, the Performance Guarantee is liable to be forfeited in full or part in case of underperformance and undue delays in performance by the agency, besides other action, including blacklisting of the agency as may be deemed fit by GeM.
- B. If any losses or damages are suffered by GeM SPV due to any negligent act of the Consulting Agency, the quantification of which may be difficult, then the amount specified hereunder shall be construed as reasonable estimate of the damages and both the Consulting Agency agrees to pay such liquidated damages, as defined hereunder as per the provisions of this Work Order.
- C. The liquidated damages shall be applicable as per relevant clause of RFP:
- D. The amount of liquidated damages under this Work Order shall not exceed 20% of the total value of the contract.

1.13 Penalty on resource replacement

In case any onsite resource is changed by the selected applicant, a replacement penalty of INR 2 Lakhs per replacement will be levied. Any such change shall be with the approval of the client.

1.14 Miscellaneous

1) Assignment and Charges

- a. The Work order shall not be assigned by the Consulting Agency save and except with prior consent in writing of the Client, which the Client will be entitled to decline without assigning any reason whatsoever.
- b. The Client is entitled to assign any rights, interests and obligations under this Work order to third parties.

- c. Indemnity: The Consulting Agency agrees to indemnify and hold harmless the Client from and against any and all claims, actions, proceedings, lawsuits, demands, losses, liabilities, damages, fines or expenses (including interest, penalties, attorney's fees and other costs of defence or investigation (i) related to or arising out of, whether directly or indirectly, (a) the breach by the Consulting Agency of any obligations specified in relevant clauses hereof; (b) the alleged negligent, reckless or otherwise wrongful act or omission of the Consulting Agency including professional negligence or misconduct of any nature whatsoever in relation to Services rendered to the Client; (c) any Services related to or rendered pursuant to the Work order (collectively —Indemnified matter). As soon as reasonably practicable after the receipt by the Client of a notice of the commencement of any action by a third party, the Client will notify the Consulting Agency of the commencement thereof; provided, however, that the omission so to notify shall not relieve the Consulting Agency from any liability which it may have to the Client or the third party. The obligations to indemnify and hold harmless, or to contribute, with respect to losses, claims, actions, damages and liabilities relating to the Indemnified Matter shall survive until all claims for indemnification and/or contribution asserted shall survive and until their final resolution thereof. The foregoing provisions are in addition to any rights which the Client may have at common law, in equity or otherwise.
- d. Notices: Unless otherwise stated, notices to be given under the Work order including but not limited to a notice of waiver of any term, breach of any term of the Work order and termination of the Work order, shall be in writing and shall be given by hand delivery, recognized international courier, mail, telex or facsimile transmission and delivered or transmitted to the Parties at their respective addresses specified in the Contract. The notices shall be deemed to have been made or delivered (i) in the case of any communication made by letter, when delivered by hand, by recognized international courier or by mail (registered, return receipt requested) at that address and (ii) in the case of any communication made by telex or facsimile, when transmitted properly addressed to such telex number or facsimile number.
- e. Severability: If for any reason whatever any provision of the Work order is or becomes invalid, illegal or unenforceable or is declared by any court of competent jurisdiction or any other instrumentality to be invalid, illegal or unenforceable, the validity, legality or enforceability of the remaining provisions shall not be affected in any manner, and the Parties will negotiate in good faith with a view to agreeing upon one or more provisions which may be substituted for such invalid, unenforceable or illegal provisions, as nearly as is practicable. Provided failure to agree upon any such provisions shall not be subject to dispute resolution under the Work order or otherwise.

- f. Professional Liability Insurance: Consulting Agency will maintain at its expense, Professional Liability Insurance including coverage for errors and omissions caused by Consulting Agency's negligence, breach in the performance of its duties under this Work order from an Insurance Company permitted to offer such policies in India, for a period of one year beyond completion of Services commencing from the Effective Date, (i) For an amount not exceeding one time the total payments for Professional Fees made or expected to be made to the Consulting Agency hereunder or (ii) the proceeds, the Consulting Agency may be entitled to receive from any insurance maintained by the Consulting Agency to cover such a liability, whichever of (i) or (ii) is higher with a minimum coverage of [insert amount and currency].

1.15 Performance security

- a. The Consultant shall prior to the Effective Date and as a condition precedent to its entitlement to payment under this Work order, provide to the Client a legal, valid and enforceable Performance Security in the form of an unconditional and irrevocable bank guarantee as security for the performance by the Consultant of its obligations under this Work order, in the form set out in this work order, in an amount equal **10 (Ten) percent** of the total cost of Financial Proposal under this Assignment. Further, in the event the term of this Work order is extended, the Consultant shall at least thirty (30) days prior to the date of expiry of the then existing bank guarantee, provide an unconditional and irrevocable bank guarantee as Performance Security for an amount equivalent to 10 (ten) percent of the total cost of Financial Proposal under this Assignment.
- b. The Performance Security shall be obtained from a scheduled commercial Indian bank, in compliance with Applicable Laws (including, in case the Consultant is a nonresident, in compliance with applicable foreign exchange laws and regulations).
- c. The Performance Security shall be extended accordingly such that the Performance Security remains valid until the expiry of a period of 120 (One Twenty) Days from the date of completion of the assignment. If the Client shall not have received an extended/ replacement Performance Security in accordance with this clause at least thirty (30) days prior to the date of expiry of the then existing Performance Security, the Client shall be entitled to draw the full amount of the bank guarantee then available for drawing and retain the same by way of security for the performance by the Consulting Agency of its obligations under this Work order until such time as the Client shall receive such an extended/ replacement Performance Security whereupon, subject to the terms of this Work order, the Client will refund to the Consulting Agency the full amount of the bank guarantee, unless the Client has drawn upon the Performance Security in accordance with the provisions of this work order,

in which case only the balance amount remaining will be returned to the Consulting Agency; provided that the Client will not be liable to pay any interest on such balance. The Client will return the bank guarantee provided as Performance Security to the issuer thereof for cancellation promptly upon receipt of any extension/ replacement thereof. Subject to satisfactory completion of all deliverables under this Work order, the Performance Security will, subject to any drawdowns by the Client in accordance with the provisions hereof, be released by the Client within a period of 120 (One Twenty) Days from the date of completion of the services.

- d. Performance security to be taken in case of any non- compliance, to-be immediately refurbished if decided to continue with applicant.
- e. Performance security will be suitably extended by Agency in case client wishes to extend the contract

***All conditions of RFP shall be considered to be integral part of this work order.**